Genuine Edition.

N° 2

THE

TRIAL

OF

RICHARD PARKER,

FOR MUTINY, &c. &c.

ON BOARD OF HIS MAJESTY's FLEET AT THE NORE.

TO WHICH IS ADDED

AN ACCOUNT OF HIS BEHAVIOUR DURING THE WHOLE PROCEEDINGS.

AND

AT THE PLACE OF EXECUTION.

WITH

A DESCRIPTION OF HIS PERSON.

12°

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TRIAL

OF

RICHARD PARKER.

COURT MARTIAL at GREENHYTHE.

ON the morning of the 22d June, a gun was fired from his Majeſty's ſhip Neptune, of 98 guns, Captain Stanhope, at anchor off Greenhythe, when the union jack was hoiſted at the mizen peak, as a ſignal for the trial, and for the officers to aſſemble on board.—As ſoon as the Court was formally aſſembled, the doors were thrown open, and

Richard Parker, late a ſupernumerary ſeaman on board the Sandwich guard-ſhip, lying at the Nore, was brought into Court in cuſtody of a Deputy Marſhal Provoſt of the Admiralty, and placed at the lower end thereof, on the left hand of the Judge Advocate; the Provoſt ſtanding by his ſide with a drawn ſword in his hand, erected in the face of the priſoner; and was the only man in Court who wore his hat during the proceedings.

The following Gentlemen compoſed the Court:

ADMIRAL PASLEY, PRESIDENT.

Sir E. Gower,	
Captain Stanhope,	Neptune.
——— Williamſon,	Agincourt.
——— Markham,	Centaur.
——— Wells,	Lancaſter.
Sir J. Williams,	Endymion.
—— Riou,	Princeſs Auguſta.
—— Laforrey,	Hydra.
—— King,	Syrius.
—— Lane,	Acoſta.
—— Pierrepoint,	Naiad.

The Members of the Court being ſworn, and Mr Benſtead, the Deputy Judge Advocate, having taken the oath of ſecrecy,

The order of Government to the Lord High Admiral for the Court Martial was read. It ſtated, "Whereas we have received information from Vice Admiral Buckner, commander of the fleet at the Nore, and by divers other letters, that a mutiny had taken place on board the Sandwich, on or about the 12th of May laſt, and did continue for ſeveral days, to the evil example of his Majeſty's fleet, and that Richard Parker was active in promoting the ſame; whereas, we think fit that the ſaid Richard Parker ſhould be tried by a Court Martial for ſuch offence, we therefore direct you to aſſemble a Court Martial, to inquire into the conduct of the ſaid Richard Parker, on board his Majeſty's ſhips, or any of them, and alſo, for his contempt and diſobedience of his officers."

The following oath was then taken by the ſeveral Captains compoſing the Court:

"I A. B. do ſwear, That I will duly adminiſter "Juſtice, according to the Articles and Orders eſta-"bliſhed by an Act paſſed in the Twenty-ſecond "year

" year of the Reign of his Majeſty King George " the Second, for amending, explaining, and reducing " into one act of Parliament, the Laws relating to " the Government of his Majeſty's ſhips, veſſels, and " forces by ſea, without partiality, favour or affec- " tion; and if any caſe ſhall ariſe which is not particu- " larly mentioned in the ſaid Articles and Orders, I " will duly adminiſter juſtice according to my con- " ſcience, the beſt of my underſtanding, and the cuſ- " tom of the Navy in the like caſes; and I do further " ſwear, that I will not, upon any account, at any " time whatſoever, diſcloſe or diſcover the vote or " opinion of any particular Member of this Court " Martial, unleſs thereunto required by Act of Par- " liament. " So help me God."

All the witneſſes were ordered out of Court, till ſuch time as they ſhould be called to be examined.

John Sims a witneſs, who had been ſummoned on behalf of the priſoner, not appearing, Mr John Snipe, the ſurgeon of the Sandwich, was ſworn, and ſtated that the witneſs the priſoner had called, was confined to his bed by illneſs.

Captain Knight, on the part of the witneſſes ſummoned by the priſoner, in his defence, aſked of the Court, whether it would be neceſſary for all thoſe who were ſummoned to attend during the whole of the evidence of the proſecution?

The Court treated this as a novel application, and were decidedly of opinion, that all perſons ſummoned ſhould attend, as it was uncertain when they might be called on.

The oath adminiſtered to each witneſs was, " I " ſwear by God, and as I ſhall anſwer to Almighty " God, at the day of judgment, that the evidence I " ſhall give ſhall be the truth, the whole truth, and " nothing but the truth." " So help me God."

Captain Moſs, of the Sandwich, appeared as proſecutor.

The charges againſt the priſoner were then read. Theſe were.—" For cauſing or endeavouring to " cauſe mutinous aſſemblies on board his Majeſty's " ſhip Sandwich, and others of his Majeſty's ſhips at " the Nore, on or about the 12th of May laſt; for " diſobeying the lawful orders of his ſuperior offi- " cers, and for treating his officers with diſreſpect."

Charles Buckner, Admiral of the White, ſworn.

Q. Did the priſoner belong to the Sandwich?—A. Yes; he was reported to me as belonging to her, but I do not know in what capacity.

Q. Do you know the priſoner?—A. Yes.

PRESIDENT.—Relate to the Court what you know of the priſoner's making any mutinous attempts on board his Majeſty's fleet, on or about the 12th day of May laſt, or of any diſreſpectful conduct or expreſſions uſed by him on board or on ſhore, at any time afterwards, during the ſaid mutiny.—A. I know nothing of the priſoner individually. The firſt time I obſerved any thing particular in the priſoner's conduct, further than parading about with a vaſt number of people and a red flag preceding them on ſhore, was on or about the 20th of May, when I went on board the Sandwich, for the purpoſe of making known to the people of that ſhip, and other ſhips, his Majeſty's proclamation of pardon, on their returning to their duty, on the terms granted to their brethren at Spithead, which they (the men ſtyling themſelves Delegates, with Parker the priſoner among them) had previouſly declared they would be ſatisfied with. On going on board with the flag in my boat, there was no preparation for receiving me, nor any reſpect ſhewn me whatever. The officers, as I underſtood, were without their ſide-arms, and had no command of the ſhip. Unwilling to return on ſhore without having an

opportunity

opportunity of ſpeaking to the people, I waited a conſiderable time, when Parker, the priſoner, with others, came on the quarter-deck, and ſaid, that none but themſelves, (meaning, I preſume, the ſhip's company) ſhould be there. He (the priſoner) then tendered me a paper, containing what he and the reſt called a liſt of grievances, ſaying at the ſame time, till thoſe were redreſſed, and the perſonal attendance of the Admiralty ratified it, they would not give up the power they held in their hands. Finding any thing I could ſay of no avail, I went on ſhore. On or about the 22d, certain troops arrived at Sheerneſs. I do not ſpeak individually of Parker, but of the mutineers in general. About the 23d, my flag was ſtruck on board the Sandwich: I don't ſay by whom; I don't charge any individual; it was ſtruck without orders. About that time, the evening of that day, I was at the Commiſſioner's houſe: while I was examining into the complaints alleged againſt two marines by part of the military, a man whom they called Davies, with I believe three or four others, came abruptly into the Commiſſioner's houſe at Sheerneſs, and demanded why thoſe men, meaning the marines, were in cuſtody? they ſaid my flag was ſtruck, that I had no authority, and that the power was in their hands. They then took the men away, as they ſaid, to try them for being on ſhore. I avoid repeating what I ſaid to them. It may be taken for granted, I remonſtrated as much as poſſible with them. Parker told me that he was not to be intimidated. About the 4th of June I received a letter from Parker, to the beſt of my recollection, ſtyling himſelf Preſident, ſigned with the name of Richard Parker, ſaying that Adminiſtration had acted improperly in ſtoping the proviſions allowed to the men, and that the *fooliſh proclamation* was calculated to inflame the minds of honeſt men. I have nothing particular more to

relate. I have had frequent conferences with him, at the head of many others, with the hopes of bringing them to a ſenſe of their mutinous conduct, but without effect. He, the priſoner, took the lead as ſpokeſman.

Q. Did he act with any degree of inſolence?—A. Sometimes, not always. He took the lead, appealing to them whether he was not authoriſed, and whether it was not their wiſh he ſhould do ſo; and he even prevented one man in particular, whoſe name I know not, from anſwering a queſtion I had put to him.

Q. Was he a ſeaman?—A. I do not know.—He prevented him with threats, ſaying, "If you ſpeak, I will ſpeak to you." While I was on board the Sandwich, I expoſtulated with them on the impropriety of keeping thoſe diſgraceful ropes called yard-ropes, on board, and endeavoured to prevail on them to pull them down. The men ſtyling themſelves Delegates, replied, that the ſhip's company would not ſuffer them.

PRESIDENT. In the different conferences you had with the priſoner, did there appear any inſolence in his behaviour?—A. Frequently, but not uniformly ſo: very often otherwiſe: ſometimes there was a great deal of modeſty in his behaviour, and he conducted himſelf with a great deal of apparent reſpect.

PRESIDENT. Who was the officer that brought the report of the mutiny? Was Lieut. Juſtice the officer who brought the report of the mutiny having broke out in the Sandwich on the morning of the 12th of May?—A. Yes.

Q. Did you not order Lieut. Juſtice of the Inflexible, while I was preſident at a court martial, to break up that court, and wait on you for orders?—A. Yes.

PRESIDENT. Read Admiral Buckner's letter.

Admiral Buckner's letter was here read, giving an

an account of the mutiny. It was dated 12th May, at Sheerneſs, and ſtated, that a mutiny had made its appearance at the Nore, on board the Sandwich; that the crew had taken the command from the officers, and that the marines had joined them. The letter then proceeded to deſcribe the mutiny generally, and concluded by obſerving, that it had been originally owing to a diſbelief of the act of Parliament having paſſed, and that it had afterwards been fomented by miſchievous individuals.

A letter from Captain Moſs was next read, giving an account of the mutiny having broke out. The next letter was one of Parker's, which had been ſent to Admiral Buckner. It was brought on ſhore by an old man, after the proclamation had been ſent on board the fleet. The letter was dated the 3d of June, and was to the following effect:

"I am commanded by the committee of the Sandwich to inform you that they have this day taken poſſeſſion of, and appointed delegates for the whole fleet. We are uniformly of opinion that the conduct of the Admiralty has been highly improper, in ſtoping the proviſions allowed by Government to the ſeamen, and that the fooliſh proclamation which we have received is only calculated to exaſperate the the minds of a ſet of honeſt men, who would never be more happy than in ſerving their country.

"To Admiral Buckner."

Being aſked, whether he was certain the letter was genuine, he expreſſed his certainty that it was from Parker.

Q. What number of perſons were there at the Commiſſioner's houſe, when the two marines were examined?—A. There were Parker and Davies, and four or five more.

Q. What

Q. What number of military were the marines in charge of?—I do not know.

Croſs examined by Parker the priſoner.

Q. You have related that you was on board the Sandwich on or about the 20th of May, and received no reſpect. Who was on board firſt, you or myſelf?—A. I believe I was.

Q. Do you deem me the perſon that cauſed you to be received with no reſpect?—A. Not having ſeen you in any overt acts of mutiny, I cannot ſpeak to that queſtion.

PARKER. I aſk the queſtion to ſhow that I did not influence the ſhip's company. Did I not come to you on the qarter-deck, and inform you it muſt have originated entirely in a miſtake, that you was not received with that honour due to you; but that if you would excuſe it then, we were ready to give you three cheers now?—A. He did come to me and ſay that it was a miſtake, and that no diſreſpect was intended me. Some faint attempts were made to man the yards, but it ſubſided, and the yard-ropes continued.

Q. Do you recollect going on ſhore the ſame day with the Sandwich's and ſome other boats attending, and ſeeing your flag hauled down?—A. I did not obſerve the flag was hauled down: ſeveral boats attended me.

PARKER. I was in the boat when your flag was hauled down: I obſerved it with a great deal of ſorrow.

COURT. When the priſoner treated you with reſpect and modeſty, was it privately or publicly before the ſhip's company?—A. I never had any private converſation with him, and never ſaw him before the ſhip's company but once, and never on board the Sandwich but once. At all other times it was with a number of perſons calling themſelves Delegates.

Q. When

Q. When the priſoner came to you on the 20th May, and apologiſed for due reſpect not having been paid to you, did he appear to you to have any influence, or to command the people on board by his authority, or to be active in the ſhip?—A. I conceived, by his coming to me to make that apology, that he muſt have had ſome command in the ſhip. I had no opportunity of obſerving him after he left the quarter-deck, till he came with the written paper as before mentioned in my former evidence.

Lieutenant Juſtice, Second Lieutenant of the Sandwich, ſworn.

Q. Do you know the priſoner?—A. Yes.

Q. Have you heard the charges read?—A. Yes.

Q. Did the priſoner belong to the Sandwich, and in what ſtation?—A. Yes; he was a ſupernumerary ſeaman.

Q. How long has he belonged to it?—A. I cannot ſay; I was at the Admiralty when he came on board.

Be pleaſed to relate to the Court, as directed to the foregoing witneſs.

I never ſaw the priſoner on the 12th of May. I was turned aſhore on Friday the 12th of May. I can't ſay by whom. A paper was ſent aft, for certain officers to quit the ſhip. At eight o'clock I piped to breakfaſt; at half paſt nine, I gave orders to turn the hands up and clear hawſer. The ſhip's company all got forward on the booms, and gave three cheers, which were immediately anſwered by the Director ſhip's company; immediately our ſhip hove yard-ropes, and pointed the forecaſtle guns to the quarter-deck. I immediately went forward, and remonſtrated with them as to their conduct; they all anſwered, they wanted their grievances redreſſed.

COURT.

COURT. What do you know of the priſoner?—A. I know nothing of him. I know only of the general mutiny; the firſt time I ſaw him was on the 11th, when he came with a letter on the forecaſtle, when the guns were pointed aft.

Q. On the 12th, when they gave three cheers, was there no particular perſon that appeared to you to take a leading part in the tranſactions going on?—A. No: I did not ſee. They were one and all.

Q. Was you the commanding officer of the Sandwich on the 11th as well as the morning of the 12th of May?—A. I was, publicly on the quarter-deck.

Q. Did you read an official paper ſent off by Admiral Buckner, repreſenting the vote of the Houſe of Commons, of the granting the ſum of L.372,000, to anſwer the expences which the requiſition of the ſeamen had rendered neceſſary?—A. I did.

Q. How was it received?—A. With three cheers, as I read it.

Proſecutor. On returning to the Sandwich in the morning of the 12th of May, after reporting the mutiny that exiſted, do you remember acquainting me the people had given charge of the ſhip to Mr Bray, the Maſter?—A. I think I do, Sir.

Q. You muſt recollect—A. Yes; I did.

Q. Do you remember orders being given that no officer ſhould interfere, the maſter having orders from the Committee, or a ſet of men who had uſurped the power, not to interfere with any duty of the ſhip, or with any officers?—A. I heard that as ſoon as I returned from the ſhore.

Q. Did I not, notwithſtanding, direct the boatſwain might pipe all hands?—A. Yes.

Q. Was it obeyed by the people?

This queſtion was not anſwered, nor was the examination continued.

Croſs

Croſs examined by Parker.

Q. You have ſaid you know nothing of me?—A. No: I do not.

Captain Edward O'Bryen, Commander of the Naſſau, ſworn.

Q. Do you know the priſoner?—A. I never ſaw him in my life. I was not on board from the commencement till after the mutiny was over.

Q. Was he ever on board the Naſſau?—A. He was reported to be ſo; the boatſwain was aboard; he is here.

Captain Fancourt, of the Agamemnon.

Q. Do you know the priſoner?—A. I never ſaw him before to-day.

Q. Was he ever on board the Agamemnon?—A. Never to my knowledge.

PRESIDENT. Has the priſoner any queſtion to aſk?—A. None, Sir.

Captain Cobb, of the Lion.

Q. Do you know the priſoner?—A. I never ſaw him before.

Q. Was he on board the Lion?—A. Not that I know of.

Q. Have you any queſtion?—(to the priſoner) A. No, Sir.

Thomas Parr, of the Standard.

Q. Do you know the priſoner?—A. I never ſaw him before.

Q. Was he ever on board the Standard?—A. Never to my knowledge.

Captain

Captain Robert Watſon, of the Iſis.

Q. Do you know the priſoner?—A. I do not.

Q. Was he ever on board the Iſis?—A. I have heard that he was.

Captain W. Harwood, of the Leopard.

Q. Do you know the priſoner?—A. No: I do not.

Q. Do you know of his being on board the Leopard?—A I have heard he was.

Mr Snipe, Surgeon of the Sandwich, ſworn.

Q. Do you know the priſoner?—A. Yes.

Q. What was he on board the Sandwich?—A. I underſtood he was a ſupernumerary ſeaman.

Q. How long has he belonged to the Sandwich?—A. I never recollect him before the 14th of May.

Report what you know, &c. (as before.)

In the afternoon of the 14th of May, I was ordered to attend the puniſhment of one of the ſeamen of the Sandwich, whoſe name is Campbell.

Q. By whom ordered?—A. By Mr Bray, the maſter, who ſaid it was the committee's orders that I ſhould attend the puniſhment. When I went on deck, the priſoner was ſtanding on the gangway; as ſoon as Campbell was tied up, Parker made a ſpeech to the ſhip's company, acquainting them with the crime of Campbell, ſaying, If any of them violated the laws laid down by the committee, they muſt expect to ſhare the ſame fate; that was the general purport of his ſpeech.

COURT. What do you mean by the Committee?—A. The aſſembly of people calling themſelves Delegates in the Sandwich; the priſoner was one of them. Two or three days after that, one of the ſhip's corporals belonging to the Sandwich, whoſe name

name was Wilſon, ſaid to me in the ward-room, it was the committee's orders that I ſhould immediately go between decks, and viſit a man in irons, who he ſaid was very ill. I accordingly went, and found the perſon had a fever. I deſired the corporal to go to the committee, to ſay, it was dangerous to let the man remain in that ſituation. It was neceſſary for the man to be taken out of irons, and ſent to his birth. He returned, and ſaid it was the committee's order, for me to make my report in perſon.

I accordingly went to the ſtarboard bay of the lower gun-deck, and there found a vaſt crowd of people aſſembled. I aſked who I was to addreſs; and the priſoner, Parker, deſired me to addreſs him. I told him it was neceſſary to remove the priſoner that was then in irons. The priſoner made anſwer, "It is not our intention to interfere with you at all. You may do with the ſick whatever you may think proper." When I entered what they called the Committee-room, one of the people, whom I ſuppoſed to be a delegate, ſaid, Take off your hat, Sir: another perſon, but not the priſoner, as I was looking round, cried out, Begone. I was two or three times before the committee. I in general received an anſwer from Parker, that I might do with the ſick as I thought proper. On the 3d of June, I ſent into the committee for permiſſion to go on ſhore. I aſked permiſſion of Davies, who acted as commanding officer on deck. I was ordered down to the committee aſſembled in Captain Moſs's cabin. I then aſked their permiſſion to go on ſhore, as I had ſome ſick on board, which I wiſhed to be removed to the hoſpital. The priſoner, Parker, recommended to the committee to let me go on ſhore, upon condition that I returned to my duty next morning; and hoped I would uſe my influence to get the whole of the ſick of the fleet landed. I accordingly went on ſhore, and never returned on

board again until the ſhip was under the command of Captain Moſs, the proper officer. One day in May, after the mutiny began, when the priſoner was ſpeaking to Captain Moſs, who was pointing out to him the numerous improprieties which men in a ſtate of mutiny were guilty of, the priſoner ſaid, that he was certain, until their grievances were redreſſed, there would not one of them ſhrink; for if they did, it was certain they would be run up to the yard-arm; (pointing to the ropes). I do not recollect any thing elſe for or againſt the priſoner.

PRESIDENT. You ſay, when you was on deck, you ſaw the priſoner haranguing. Did he appear to give orders?—A. After he had made his ſpeech, he ordered the boatſwain to do his duty.

Q. Did Parker give the orders for the man to receive a dozen laſhes?—A. Yes; he did.

Q. At what time?—A. The puniſhment took place on the 14th of May.

Q. When you ſay you underſtood Davies acted as Captain, in what capacity did you conceive the priſoner acted?—A. As preſident of the committee; it was generally underſtood ſo by the officers, and every perſon.

Q. Do you recollect where the priſoner was ſitting when you went into the committee-room, and what ſtation he appeared to hold when he was ſitting at the head of the table in Captain Moſs's cabin?—A. As preſident.

Q. Did not the priſoner appear to be the principal perſon?—A. He did when I ſaw him.

Q. Do you remember the day the Admiral's flag was hauled down?—A. I do not immediately recollect the day of the month.

Q. Do you recollect that it was hauled down?—A. I ſaw the red flag in its place; I went upon deck after breakfaſt, and was very much ſurpriſed to ſee the red flag in the place of the Admiral's. It ſtruck me

me as the moſt daring outrage I had ever ſeen in the courſe of my life.

Q. Did the priſoner at any time give his orders to aſſemble the people on deck?—A. I cannot pretend to ſay, I never heard; no ſuch orders were ever given in my hearing.

Q. By whoſe orders was the ſick perſon whom you repreſent to have been in irons confined, and for what offence?—A. By order of the mutineers aſſembled, calling themſelves the Committee.

Q. For what offence?—A. Drunkenneſs—that was Campbell's crime.

Q. When Captain Moſs was remonſtrating againſt the impropriety of the men mutinying, was the priſoner's hat off or on?—A. His hat was on.

Croſs examined by Parker.

Relating to the puniſhment of Campbell, do you recollect the maſter (Mr Bray) being on the gangway?—A. A number of people were aſſembled; I know he was on deck, but I do not know where.

Q. Do you know of Mr Bray's having been conſulted as to the puniſhment of that man who was beaſtly drunk with ſmall beer?—A. I do not.

Q. When you mentioned my pointing to the yard-ropes, and ſaying that I was ſure no one would ſhrink, or if they did they would go to the yard-arm,—did you ſuppoſe I meant any thing elſe than if the people called Delegates were to propoſe ſuch a thing to the ſhip's company, that they themſelves would be the ſacrifice alluded to?

The Court humanely hinted at the dangerous tendency of the queſtion to the priſoner, and he withdrew it, with thanks for the admonition of the Court.

I will aſk Mr Snipe no more queſtions.

Captain Thomas Surridge of the Iris.

Q. Do you know the priſoner?—A. I have ſeen him ſeveral times.

Q. Had you any converſation with him?—No, I had none myſelf.

Q. Was he ever on board the Iris?—A. I do not know; I was informed he was laſt Friday week, but I was not on board.

Q. Do you know any thing of the charge againſt the priſoner?—A. I have ſeen the priſoner ſeveral times paſſing in the boat with the red flag flying. I ſaw him parading with the other ſeamen, with a band of muſic, through the Blue Town, with the red flag alſo. I ſaw the priſoner at the Commiſſioner's houſe at Sheerneſs, in converſation with Admiral Buckner and the Commiſſioners; and as near as I can recollect, he ſaid that he could envy no officer the command that they held, for he had experienced a great deal of trouble and difficulty in the ſituation in which he was placed, or words to that effect.

Q. Did he ſay this modeſtly and reſpectfully?—A. Yes, at that time he behaved with reſpect and modeſty. I ſaw him alſo another night: the laſt night he was on ſhore before the mutiny at the Nore. He went to the commiſſioners with two delegates, one from the Naſſau, and one from the Standard. I do not know their names. One, as I underſtand, was the man who has ſince ſhot himſelf. He took a paper out of his pocket, and gave it firſt to one of thoſe delegates, and then to the other, and aſked, whether it did not contain the demands or reſolutions of the North Sea Squadron?—They returned the paper again, and ſaid it did.

He then gave the paper to Commiſſioner Hartwell, who, after reading it, told the priſoner that he was ſorry to find it contained ſo much freſh matter; that he could not think of going to London with it, but

but that, had they confined themſelves to the laſt articles, he (Parker) had ſhewn that morning, he would have gone to the Admiralty with them. Commiſſioner Hartwell told them, if they were determined to inſiſt on thoſe laſt articles, it would be unneceſſary for him to take any farther trouble in the buſineſs. I do not recollect the reply of the priſoner, but I believe he went off with the determination not to return again.

Q. At the time you obſerved the priſoner paſſing in the boat with the red flag flying, were there any perſons ſitting on the ſtern-ſheets beſides the band of muſic?—A. I do not recollect whether the band was there or not; there were ſome other perſons.

Croſs examined by Parker.

Q. Do you recollect that I deſired Commiſſioner Hartwell to converſe with the delegates of the North Sea Fleet, and endeavour to convince them, as the four laſt articles which were objected to, were preſented by that fleet?—A. I do not recollect. I ſuppoſed they were the demands of the North Sea Fleet.

Q. Do you recollect that I ſaid a converſation with them would be more proper, as they had preſented the articles?—A. I do not recollect.

Captain Dixon, ſworn,

Knew the priſoner; heard of the charge againſt him; has heard he belonged to the Sandwich; remembered well, on or about the 20th of May, I accompanied Admiral Buckner to the Great Nore. The Admiral's flag was hoiſted on the bow of the boat, and the Admiral was in his full uniform. The Admiral went for the expreſs purpoſe of notifying his Majeſty's moſt gracious pardon to the crews of the ſeveral ſhips under his command. In going on board the Sandwich, he was received without any of

thoſe marks of reſpect due to his rank as a Flag-officer. Inſtead of accepting the King's pardon, Parker, the priſoner, preſented new propoſitions, to be redreſſed under the head of grievances. The Admiral was detained on board the Sandwich upwards of three hours, in conſequeuce of the ſhip's company, I apprehended, not coming to a ſpeedy determination, reſpecting the propoſitions preſented by the priſoner; at the end of which time they were preſented by Parker to Admiral Buckner in his cabin. The Admiral returned on ſhore, being ſuffered to leave his ſhip without any marks of the reſpect due to his rank. As the man-ropes were on the yards, the yard-ropes rove, and the Admiral treated with ſo much diſreſpect, for which the officers ſeemed extremely concerned, not having it in their power to treat their Admiral with a proper and uſual reſpect, I conſidered the crew to be in a high ſtate of mutiny.

That was the whole reſpecting that one viſit. Several days afterwards I was at Commiſſioner Hartwell's houſe; the Admiral, who was there, had it reported to him, that two marines belonging to the ſhips at the Great Nore, had been brought for examination. As I advanced to the fore-door I ſaw the priſoner, who aſked me if the Commiſſioner could be ſpoke with? my anſwer was, I believe he was to be ſpoke with. The priſoner came in, accompanied by one Davies, and demanded to know if the ſoldiers had brought the marines there?—Admiral Buckner aſked him, what right he had to make any ſuch demand? The priſoner ſaid, "I am not to be intimidated; your flag is ſtruck; you have no authority here; I or we (I do not recollect which) command the fleet." Parker the priſoner immediately took up a pencil, and put queſtions to the marines. He was ſuffered to interrogate them, and take them with him. During this laſt interview with Admiral Buckner, he behaved with the moſt daring inſolence and contempt, I have frequently

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ſeen the priſoner leading a body of men, whom they called Delegates of the fleet, paſſing with the red flag diſplayed in proceſſion. Theſe are the particular circumſtances Mr Bridport, that I can bring home to my recollection.

The priſoner aſked whether he (Parker) did not do all in his power to induce the crew of the Sandwich to ſhew Admiral Buckner every reſpect?—A. You did.

COURT.—Do you remember any particular converſation between the priſoner and Admiral Buckner?—A. Parker ſaid to Admiral Buckner, that neither he or they had any buſineſs there. I remember to have heard it ſaid by Admiral Buckner, that as he, Parker, and the reſt of the delegates of the fleet had pledged themſelves to accept the ſame indulgences which had ſatisfied their brethren at Spithead, it aſtoniſhed him (the Admiral) to find new propoſitions advanced. The Admiral was certain they could not be granted. I think the priſoner, with five other delegates in the cabin, ſaid it was the determination of the ſhip's company to abide by the latter propoſitions.

Captain Dixon having retired about four o'clock, the Preſident ſuggeſted the propriety of adjourning the Court till next day, which the members agreed to. And it was declared that the Court ſhould proceed to actual buſineſs to-morrow, at nine o'clock preciſely.

SECOND DAY.—*June 23d.*

The Court met this morning at ten o'clock.—The *Judge Advocate* ſaid, that the priſoner had ſtated to him, that he would diſpenſe with the attendance of Lord Northeſk and Capt. Knight.

COURT.

COURT.—If you think them of any ſervice to diſprove the charge againſt you, you had better call them.

PARKER.—I do not think they could diſprove the charge, but they might give evidence as to the propriety of my conduct. I however think I ſhall diſpenſe with calling them.

The word *diſpenſe* occaſioned ſome difficulty with the Court. It was obſerved, that a perſon might diſpenſe with what was of the greateſt uſe to him, and that the priſoner might alter his opinion to-morrow or next day, or even in five minutes. The Court was cleared; and after deliberating about 20 minutes, it was decided, that, being evidence called by the priſoner, they ſhould continue to attend.

PARKER aſked the following queſtion:—Whether, after a Court-martial commences, freſh witneſſes, not ſummoned, are allowed to appear to give evidence?

Capt. Moss, the proſecutor, ſaid, No witneſſes had been produced, nor will any be produced againſt you, which have not been ſummoned long before the commencement of the Court martial.

PRESIDENT.—It is however, perfectly legal to call them.

The *Admiralty Solicitor* gave his opinion as to the legality, and corroborated the proſecutor's determination.

PARKER.—I am ſatisfied.

Captain Wood, of the Hound, examined.

Q. Do you know the priſoner?—A. I do perfectly.

Q. Did he belong to the Sandwich, and in what ſituation?—A. I do not know how long he has been on board the Sandwich; he was ſent from the Hound to the tender, in April laſt.

Q. Pleaſe to relate what you know of the priſoner

er making any mutinous aſſemblies on hoard the Sandwich, or any other of his Majeſty's ſhips at the Nore, or of any inſtances of diſreſpectful language or conduct to his ſuperior officers about the 12th of May?—A. I ſaw nothing of the priſoner until the 2d of June, at which time he came on board the Hound, on her arrival at the Nore. He told me that he had the honour of repreſenting the whole fleet, an honour which he ſhould never forget; that he had underſtood that I had been very violent with ſome of the delegates, and he adviſed me not to be ſo violent, as I muſt take the conſequences. He then told me that he did not like the ſhip's company; that he knew they were attached to me, for which reaſon he ſhould put the ſhip in a ſafe birth, from whence ſhe ſhould not make her eſcape. He ordered the pilot to get the ſhip under weigh, and carry her as cloſe to the Sandwich as poſſible. The pilot told him, it was an improper time of tide. He told the pilot, "that if he did not chooſe to get her under weigh immediately, he would find means of making him," and at the ſame time pointing to the yard-rope. The pilot got her under weigh, and dropped her cloſe to the Sandwich, where the priſoner ordered the anchor to be let go. He was then hailed from the Sandwich, to ſay that we were too near them. The priſoner ſaid, "I think we are, Mr Davies." He immediately turned to the pilot with threatening language: "You have committed one miſtake, take care you do not commit another; if you do, I will make a beef-ſtake of you at the yard-arm." He ordered him to get under weigh again and to moor her between the Sandwich and Inflexible; ſhe was got under weigh, and came upon the Sandwich's quarter, when the priſoner had the hands turned up, and harangued them forward: what paſſed I cannot exactly ſay, but I heard him ſay, that if he found they were not hearty in the cauſe, that he ſhould be obliged

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ged to ſhift them. He then aſked them if they had any complaints againſt their officers: thoſe that they diſliked were to be turned on ſhore, and thoſe that they liked were to be kept on board. After this a delegate came from the Sandwich, and I was taken out of the ſhip.—I aſked by whoſe orders this was done? and the delegate ſaid, by order of the Preſident, Parker. I ſaw the priſoner frequently rowing about with a red flag, and a band of muſic, with others in the ſtern-ſheets, from ſhip to ſhip, talking to the crews, who cheered him as he paſſed.

Q. What do you know further?—A. I ſent two letters on board the Sandwich, one to the Admiralty on ſervice, another a private one; the priſoner brought the letters to me, and told me they could not be allowed to go, without being opened. I took my private letter, and told him he might open the other, if he pleaſed. One of the men ſtanding by deſired him not to open it. The priſoner replied, "Hold your tongue, you ſcoundrel, or I will have you at the yard-arm." He then told me that he would open the letter, and ſend it on ſhore in the ſick-boat, in the morning, which was the only mode of communication with the ſhore. I did not ſee him open it.

Q. Did he confine you or any of the officers?—A. He did not confine me nor any of the officers. He told me I muſt have nothing to do with the ſhip, or any of the officers. He likewiſe told me and the officers, that he pitied our ſituation, but that they muſt go through with it, for the good of the cauſe they had embarked in.

Q. When the priſoner adviſed you not to be violent to the delegates, or you muſt take the conſequences, did you think that it was intended to intimidate you, or with a view to ſave you from any miſchief?—A. The priſoner told me, that he adviſed me as a friend, as he had underſtood that I had drove

drove ſome of the delegates out of the ſhip, by threatening to put them to death. I had afterwards ſome converſation with the priſoner, aſking him why he would ſend people on board, to force my men into the buſineſs; that they had no complaint, and wiſhed to have nothing to do with it. He told me, that it was for the good of the whole, and they muſt have to do with it.

Q. You have ſtated to the Court, that the priſoner deſired the pilot to get the Hound under weigh, and the pilot objecting to it on account of the improper time of tide, he, the priſoner, told him that he would find means to force him, pointing to the yard-ropes: were the yard-ropes rove before or after the priſoner's coming on board the Hound?—A. The yard-ropes were rove by a man belonging to the Pylades, but I cannot ſay whether by the priſoner's order or not, ſubſequent however to the priſoner's coming on board.

Q. Who directed the management of the ſhip after ſhe got under weigh?—A. She dropped with the tide without fail.

Examined by the Priſoner.

Q. You have related, in anſwer to a queſtion already aſked, that I adviſed you as a friend: I now beg you to recollect, whether, when coming on board the Hound, I ſaid to you, "Captain Wood, the differences exiſting in the fleet are of a very unpleaſant nature: I feel myſelf in ſome degree under an obligation to you; therefore, I would adviſe you to have nothing to do at preſent, but to let things go on board the Hound as the reſt of the ſhips were proceeding, as I had no doubt, in the courſe of a day or two at fartheſt, the officers would reſume their former commands?—A. I recollect when he came on board, he ſaid he was obliged to me for

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ſending him back to the tender, for which reaſon he had come to adviſe me not to be ſo violent; but I do not recollect any thing of the officers reſuming their commands.

Re-examined by the Court.

Q. When the priſoner had the hands turned up, and harangued them forward, do you mean that the priſoner ordered the boatſwain, or boatſwain's mate to turn them up?—A. I heard him order the boatſwain's mate to turn the hands up, and ſend them forward.

Nicholas Flatt, 1ſt Lieutenant of the Sandwich, examined.

Q. Do you know the priſoner?—A. Yes.

Q. Did he belong to the Sandwich, and in what ſituation?—A. He did, as a ſupernumerary.

Q. You will relate to the Court what you know of the priſoner's conduct during the exiſtence of the mutiny on board the Sandwich?—A. In the firſt part of the mutiny I did not know the priſoner. The firſt of my knowledge of him was when Admiral Buckner came on board. I ſaw the priſoner giving a paper to Admiral Buckner, ſtating the grievances of the fleet. I heard the priſoner ſay, that he was Preſident of the Delegates of the Fleet. I ſaw the priſoner going in boats frequently, and acting as commander in them. I do not remember any thing more of him, further than that he was very active in attending the committees. On the 2d of June, the priſoner deſired me to come over to the ſtarboard ſide of the deck, and receive orders: "You are ordered, Sir, ſaid he, to receive 111 men from the Leith Tender, and to give a receipt for them, as uſual, as we are accountable for what we do." I replied, that I had received no orders from Admiral Buckner,

Buckner, and that, having no command, my receipt would be of no uſe. The priſoner ſaid, "We are anſwerable for what we do." I then muſtered the men, and gave the receipt. I was again ſent for by the committee on the 4th of June, to give a receipt for 15 men from the Lynn Tender, which I accordingly did: I was told that it was by the priſoner's orders, as preſident of the committee. On or about the 9th of June, I was a priſoner in the ward-room, when I ſaw the priſoner paſſing in a boat under the ſtern of the ſhip. I heard three cheers given overhead to him. The priſoner turned round and ſaid, he was going on board the Director, to bring a ſpring upon her cable, and to ſend her and them (meaning I believe the Repulſe) to the devil. The Repulſe was then aground in the Medway, on her way to Sheerneſs harbour. I ſaw the priſoner go on board the Director, and perceived him put the ſpring upon her cable, when a heavy fire commenced upon the Repulſe from that ſhip. I did not ſee the priſoner return. On the 13th of June, I was releaſed from confinement, and in the afternoon of that day was confined again. On or about the 14th, the priſoner came down and releaſed the whole of the officers from the ward-room, telling us we might walk the deck, but could not be ſuffered to hold any converſation with the people. The priſoner was ſent for by Mr Mott, the Lieutenant, the ſame day on which we were releaſed. All hands came upon deck, being called upon by the priſoner's orders, and were informed by him, that Mr Mott was to go on ſhore, to bring with him his Majeſty's pardon. He aſked the people if they were willing that Mr Mott ſhould go? The anſwer was, that they were willing; and the men expreſſed a wiſh that the ſhip ſhould be given up to the officers. Some of the people wiſhed the white colours to be hoiſted, and the blue enſign to be hauled down, before Mr Mott went on ſhore.

Several of the people came forward, and the priſoner ſaid to me, that if we changed the colours, three ſhips aſtern ſhould fire at us. I called out, Stop the colours from being hoiſted, until Lieutenant Mott returns; and the people agreed to my requeſt. Mr Mott went on ſhore, and brought back with him the proclamation. The priſoner ordered all hands up, and the proclamation was read upon the quarter-deck, by one of the clerks, who was deputy purſer. The priſoner then ſpoke to the people, and aſked them, if they were willing to accept of his Majeſty's pardon, and to give the ſhip up to the officers, or let her remain in their own poſſeſſion, or, as the priſoner termed it, *with us?* The people all anſwered, "To the officers," except the priſoner, and two others now in cuſtody, namely, Jones and Davies, who ſaid, that the ſhips aſtern ſhould fire upon them if they altered their colours. Lieutenant Mott, myſelf, and the people called out to change the colours. I ſaid, they might fire and be damned: the priſoner ſaid, "Then we will give three cheers;" and he joined in them. I demanded the keys of the magazine and ſmall arms, which was complied with by the priſoner, who ſaid, "Here are the keys of the magazine, and the charge of the ſhip I give up to you as the ſenior officer." I then gave orders to unmoor ſhip. The priſoner came to me, and ſaid, that if I offered to unmoor, the ſhips aſtern ſhould fire upon us; I told him I did not care: he ſaid, he was ready to come and work at the capſtern, and aſked me if I meant to confine him: I told him I would order him to a cabin, with two centinels over him: he refuſed to go, and ſaid he would heave at the capſtern. About half paſt nine on Tueſday in the evening, I conſulted with the officers, whether it was proper to confine the priſoner before we got under weigh, or defer it till after we reached the garriſon of Sheerneſs. It was agreed that we ſhould

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confine him immediately. Lieutenant Mott and myſelf, went on the quarter-deck, where we found the priſoner. Lieutenant Mott laid hold of the priſoner by the collar, brought him down below decks, put him in Lieutenant Bamp's cabin, and there placed two centinels over him. On the following morning, I went down, and put the priſoner in irons. This is all I remember, except the priſoner's going on ſhore by Captain Moſs's orders.

COURT. At the time of your putting the priſoner in irons, was it occaſioned by any new ſigns of violence on his part?—A. No: it was in compliance with the orders of Admiral Buckner.

Q. Previous to your releaſe, had the major part of the men of war ſailed, or ſeparated from the Nore?—A. Several of them had ſeparated at the time.

Q. What reaſons were given, and by whom, for your releaſe?—A. The priſoner himſelf releaſed us, but gave us no reaſon for ſo doing.

Q. Do you know if the priſoner had been accoſted, or commanded by any perſon to releaſe you?—A. I was informed that a black man, named John Campbell, had demanded our releaſe; but we did not hear him make the demand.

Q. When you ſaw the priſoner go to the Director from the Sandwich, was there any perſon in the ſtern-ſheets of the boat with him?—A. I do not recollect any, except the boat's crew.

Q. In the courſe of your evidence, you have diſtinguiſhed the priſoner by the appellation of Preſident; did you know, during the exiſtence of the mutiny, that the priſoner ever aſſumed any other title, or was he ever addreſſed by the crew with any particular mark of diſtinction?—A. Not to my knowledge: he called himſelf Preſident of the Committee; I never knew him by any other title.

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Q. What commands did you obſerve the priſoner give when he acted as a commander in the boats?—A. He ordered the boats to be manned; which order was complied with. When he went over the ſide, the hands were piped over to attend by the boatſwain's mate.

Q. What was the conduct of the priſoner when you delivered up the keys of the magazine to him?—A. Did not give them to him; they were not then in my poſſeſſion.

Q. If you were a priſoner in the ward-room, how could you obſerve the compliments paid to the priſoner by the crew?—A. I was confined only for a few days.

Q. After the officers were ſuſpended from their commands, who was underſtood to be the principal commander of the mutineers?—A. I do not know: the maſter was appointed for a time; Davies afterwards commanded the ſhip.

Q. When Davies commanded above, in what ſituation did you conſider the priſoner to be?—A. As Preſident, from whom, I underſtand, Davies received his orders.

Q. Do you remember ſeeing, during the mutiny, any plan of defence of the ſhips hanging upon the Sandwich's quarter-deck, under the poop?—A. No.

Croſs examined by Parker.

Q. You have related being on the quarter-deck after the return of Lieutenant Mott from Admiral Buckner with a proclamation; were you preſent the whole of the time of its being read and taken into conſideration?—A. Yes I was.

Q. Do you recollect my begging the ſhip's company to deliver up the ſhip to the officers, and truſt to his Majeſty's clemency?—A. I do not recollect your begging the ſhip's company, but merely aſking them if they were willing to give up the ſhip.

Q. When

Q. When the white colours were hoiſted, did you not hear me ſay publicly, that it was the happieſt moment I had felt for a long time?—A. I do not recollect any ſuch words; the noiſe and confuſion might prevent me from hearing them.

Q. When the fore-top ſails were unlooſed, did I not, in the moſt reſpectful manner, come on the quarter-deck, and point out to you, that the intention of the crews of the Inflexible, and two more line of battle ſhips aſtern, whom I was afraid of from their violent tempers, and who kept ſprings on their reſpective ſhips, was to rake the Sandwich every ſhot; aſſuring you at the ſame time, that I did not dictate, but begged in that one inſtance to be excuſed, adviſing that the Sandwich might not be got under weigh, for her own ſafety, until ſhe was leſs obſerved by the ſhips above mentioned?—A. The conduct of the priſoner was reſpectful on that occaſion, and he certainly offered the opinion mentioned by him.

William Levingſton, boatſwain of the Director, ſworn.

Q. Do you know the priſoner, and did you hear the charge read?—A. Yes.

Q. Did he belong to the Sandwich?—A. I only know that he came from that ſhip, and was always hailed from her.

Q. Do you remember ſeeing the priſoner on board the Director upon the day the Repulſe got aground in attempting to go into Sheerneſs harbour?—A. I do.

Relate to the Court his proceedings from the time of his going on board till his departure?—A. When the priſoner came on board, he came aft on the quarter-deck. He requeſted a boat to go with a flag of truce on board the Repulſe, and ordered all hands to be called: the boat was denied; on which he expreſſed a deſire to ſlip the ſhip's cable to go a-

long ſide, which was alſo denied. He next ordered a ſpring to be put on the cable which was the beſt bower, to bear her broadſide upon the Repulſe; when the ſpring was on, he ordered it to be hove in, and to bear away the beſt bower. As the ſhip veered round he ordered the men to point their guns at the Repulſe. A gun was about that time fired from the quarter-deck of the Repulſe, which was then aſhore: the priſoner then gave orders to fire from all decks upon the Repulſe, as ſhe had fired upon us: which order was repeated by one of the Delegates of the Director. The priſoner going off the quarter-deck ſhortly after, I ſaw no more of him, I being on the poop. The order was complied with.

Q. How long did the Director keep up a heavy fire upon the Repulſe?—A. To the beſt of my recollection the firing continued about half an hour; two and three guns at a time being fired from every deck on the larboard ſide.

Q. Did you ſee any other ſhip with a ſpring upon her cable firing at the Repulſe at the ſame time?—A. I ſaw the Monmouth firing at the ſame time, but could not diſcern her ſpring.

Q. Riding as the ſhips were to the flood tide, could the broadſide of any ſhip be brought to bear on the Repulſe without a ſpring?—A. Not in that ſituation of the tide, to the beſt of my opinion.

Q. Who had the command of the Director when the priſoner came on board?—A. Joſeph Mitchell, Captain of the forecaſtle.

Q. Was it to him the priſoner applied to ſlip the cable?—A. He was called for, but I did not ſee him come forward at the time.

Q. During the time the priſoner was on board, did you ſee him pointing or firing a gun?—A. No.

Q. Did the priſoner come alone on board?—A. I ſaw no one elſe: I obſerved him for the firſt time on that day when he came up the quarter-deck.

Q. Who

Q. Who appointed the captain of the forecaſtle to the command of the ſhip?—A. To the beſt of my opinion, the Committee of the Director.

Q. Had he the command before the priſoner came on board?—A. I believe ſo.

Q. In the ſituation in which the Repulſe lay aground, could ſhe have brought any of her guns to bear upon the Director?—A. To the beſt of my knowledge ſhe could not, except the ſtern-chaſers.

Q. What part of the Repulſe was the gun fired from?—A. From the larboard ſide of the quarter-deck.

Q. What was the poſition of the Repulſe with reſpect to the Director?—A. Her bow, I think, was a little to the ſouthward; ſhe was almoſt end-on.

Q. Did the priſoner order the guns of the Director to be pointed at the Repulſe before or after the firing of the gun from the latter ſhip?—A. Before the gun was fired.

Q. Who was called when the priſoner requeſted the boat which was denied him?—A. Mitchell was called, but did not attend.

Q. Was the order of the priſoner for ſlipping the cables refuſed by the general voice of the people?—A. Yes—the anſwer was "No."

Q. Where were you, and how near the priſoner were you placed, when he ordered the guns to be fired?—A. I was then ſtanding on the arm-cheſt, at the ſtarboard-ſide of the break of the poop: the priſoner was then on the quarter-deck, near the place of the foremaſt-binnacle.

Q. Did the priſoner give his orders to fire by calling aloud to the people?—A. He gave his orders in an audible voice, loud enough to be heard from the quarter-deck to the forecaſtle.

Q. Did the delegates repeat theſe orders on the larboard gangway?—A. Yes.

Q. Who

Q. Who ordered them to ceaſe firing?—A. I do not know; I was on the poop, and ſaw no more of them.

Q. Did the priſoner remain on board after the firing of the Director had ceaſed?—A. I do not know.

Croſs examined by Parker.

Q. Where were you at the time the boat was refuſed me?—A. On the fore part of the poop.

Q. Had there been any guns fired at that time from the Director?—A. Not to my knowledge.

Q. Do you recollect my addreſſing the ſhip's company of the Director, and pointing out to them how dreadful a thing it was for one brother to be firing upon another, and ſaying, that if they would allow me a boat, I would take a flag of truce in it, and repair to the Repulſe, which I did not doubt would ſtop the effuſion of blood, obſerving alſo, that what might happen to myſelf I ſhould not conſider of any conſequence, even if I loſt my life, to ſave ſo many?—A. Yes, I do; it happened when you aſked for a flag of truce—*innocent blood* was the term made uſe of by you.

COURT. Was it before or after the priſoner had given orders to fire, that this converſation took place?—A. Before the orders given.

PARKER. Was there any preparation made for putting the ſprings upon the cable before I came on board the Director?—A. There had been no preparation for that purpoſe made before the priſoner came on board.

COURT. Was it poſſible that any ſuch preparation could have been made without your knowledge?—A. Yes, it was poſſible.

Samuel Hallard, Carpenter of the Director, ſworn.

Q. Did you hear the charge read, and do you know

know the priſoner?—A. Yes, I have ſeen him on board the Director.

Q. You remember ſeeing the priſoner on board the Director the day the Repulſe attempted to go into Sheerneſs harbour?—A. Yes.

Q. Relate to the Court his proceedings from the time of his coming on board the Director to his departure.—A. The firſt thing I heard him ſay was, his aſking for a flag of truce to go on board the Repulſe, to ſave the ſhedding of blood, which was denied him. The priſoner then wanted the ſhip to go alongſide the Repulſe, which was alſo refuſed by the general voice of the people on the quarter-deck. The ſhip's broadſide was ſoon after brought to bear by a ſpring on the beſt bower-cable, and the firing immediately commenced, the priſoner being, during the whole time, on the quarter-deck. The Repulſe had not fired at that time, but immediately after fired a gun from the larboard quarter. The priſoner obſerved they had returned the fire, and inſtantly ordered the men to level their guns, from which time the firing continued for a conſiderable time from all the decks. I did not ſee the priſoner after he gave that order.

Q. How long did the Director keep up a heavy fire upon the Repulſe?—A. To the beſt of my knowledge, about three quarters of an hour.

Q. Did you ſee any other ſhip, with a ſpring on her cable, firing on the Repulſe at the ſame time?—A. I ſaw the Monmouth, with a ſmall anchor, carried out; but I believe ſhe had no ſpring on her cable.

Q. Riding as the ſhips were to the flood-tide, could the broad ſide of any ſhip, in your opinion, be brought to bear upon the Repulſe without a ſpring?—A. Not to my knowledge.

Q. Who had the command of the Director when the priſoner came on board?—A. Joſeph Mitchell, Captain of the forecaſtle.

Q. Did

Q. Did the priſoner apply to him to ſlip the cable?—A. I cannot ſay.

Q. During the time the priſoner was on board, did you ſee him point or fire a gun?—A. No.

Q. Did you ſee the priſoner come on board?—A. No.

Q. Who appointed Mitchell to the command of the ſhip?—A. I cannot tell.

Q. In the poſition in which the Repulſe lay aground, do you think ſhe could have pointed any gun at the Director?—A. None except her ſternchacers.

COURT. You ſtated in one part of your evidence, that the priſoner wiſhed to carry the Director alongſide the Repulſe; for what purpoſe do you ſuppoſe that meaſure was intended?—A. I cannot ſay.

Q. Was there any apparent inclination among the ſhip's company to fire at the Repulſe before the priſoner came on board the Director?—A. There were ſeveral guns caſt looſe.

Q. Did it appear to you that the people of the Director fired at the Repulſe in conſequence of the priſoner's orders?—A. I cannot ſay.

Q. Did you hear the priſoner order a ſpring upon the ſhip's cable?—A. I did not.

Q. Was there any ſpring on the cable before the priſoner came on board?—A. I do not know.

Q. Was it poſſible for any preparation to be made for that purpoſe without your knowledge?—A. It was; I only ſaw a hawſer got up; that happened before I ſaw the priſoner on board.

Q. In what ſituation was the Repulſe when the hawſer of the Director was got up?—A. To the beſt of my knowledge, the Repulſe had then made no preparation to move.

Q. Did you diſtinctly hear the priſoner give orders to the men to level the guns?—A. I did; and he appeared to me to act entirely from his own mind, without any advice from the ſhip's company.

Croſs

Croſs examined by Parker.

Q. Do you recollect whether all the guns on the larboard of the quarter-deck of the Director were caſt looſe before I came on board?—A. Some were, but I cannot ſay whether they were all ſo.

Thomas Barry, ſeaman of the Monmouth, ſworn.

Q. Did you hear the charge, and do you know the priſoner?—A. Yes.

Q. Did you ſee the priſoner on board the Monmouth at the time when the Repulſe was attempting to eſcape into Sheerneſs harbour?—A. Yes.

Q. Relate to the Court what you know of his conduct at that time.—A. I did not ſee him when he firſt came on board; I ſaw him firſt on the forecaſtle, where he took poſſeſſion of the forecaſtle guns: I cannot ſay whether the gun which I attended was fired ſix or ſeven times at the Repulſe: on loading the gun the ſeventh time, I ſpoke to him, and told him not to put the cartridge in without I got a worm: he immediately afterwards ordered the gun to be ſpunged and loaded; after it was loaded, he was not content with a nine-pound ſhot, but took a crow-bar, and put the thick end in firſt: I then took it out of his hand, when he gave me a ſhove in the back, which knocked me over the heel of the top-maſt. After that I was kept on the forecaſtle by Vance, Captain of the forecaſtle and of the ſhip. I remained an hour and a half in that ſituation, when I was ordered down to my birth. I did not, however, ſtay long below. When I returned on deck, the priſoner was ſtanding on the heel of the ſpare top-maſt. He ordered to get the ſtream-anchor, to ſlip our bowers, and to lay the ſhip alongſide the Repulſe, in order to *ſend her to hell, where ſhe belonged to*, and ſhow her no quarter. He then told Vance, that he could not ſtay any longer

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on board the Monmouth, as he had to go on board another ſhip, in order to ſend her to the Leopard, for the purpoſe of *ſending her to hell alſo.*

Q. Were the guns in general on the larboard ſide of the Monmouth, fired upon the Repulſe?—A. Yes, they were continually kept firing.

Q. Had the Monmouth, before ſhe began firing at the Repulſe, laid on a ſmall anchor, or had ſhe a ſpring on her cable?—A. She had a hawſer out abaft, made faſt to the beſt bower.

Q. Were the gib and fore-topmaſts hoiſted to eaſe the hawſer, and to haſten the bringing the Monmouth's broadſide to bear upon the Repulſe?—A. Yes.

Q. Do you know by whoſe orders the gib and ſtay-ſail were hoiſted?—A. They were hoiſted by order of Vance.

Q. Did you ſee any other marks of activity in the priſoner while he remained on board?—A. No.

Q. When the Monmouth fired upon the Repulſe, did you ſee the priſoner point or fire any gun at her?—A. Yes, the ſternmoſt gun on the larboard ſide: the firing laſted, I ſuppoſe, about twenty-five minutes.

Q. How near were you to the priſoner when he held the converſation with Vance to which you have alluded?—A. I was ſtanding by the bits juſt before the foremaſt: my gun was the aftermoſt one on the larboard ſide.

Q. Do you know whether any guns were fired from the Monmouth before the priſoner came on board?—A. There were ſome fired before I ſaw him; but he might have been on board before that time.

Croſs examined by Parker.

Q. Had you fired any guns yourſelf, or aſſiſting in firing of them, before you firſt ſaw me on board?—A. No.

Q. Had

Q. Had there been any guns fired from other parts of the ſhip before the forecaſtle guns were fired?—A. Yes; the quarter-deck guns were fired.

Q. You have been talking a great deal about *Hell*,—I wiſh to aſk you, Whether you have been promiſed any promotion or reward, for advancing ſuch a *helliſh* account?—A. No, I never was promiſed any thing.

PARKER.—I ſhall be able hereafter *to controvert* the evidence of this witneſs; I have nothing more to ſay to him.

John Simmerland, Boatſwain's Mate of the Monmouth, ſworn.

Q. Did you hear the charges read, and do you know the priſoner?—A. Yes.

Q. Did you ſee the priſoner on board the Monmouth at the ſame time the Repulſe ran aground in attempting to go to Sheerneſs harbour?—A. I did.

Q. Relate to the Court ſuch particulars of his conduct as you witneſſed on that occaſion.—A. I ſaw a great many people aſſembled on the forecaſtle. On going up, I obſerved the priſoner abaft the foremaſt, ſtanding upon ſomething. He was juſt going to make a ſpeech. Captain Vance of the forecaſtle wiſhed to ſpeak before him; but the priſoner would not allow him. Hs inſiſted upon the ſhip's ſlipping her cable, which demand the people refuſed to comply with. He then ſaid, he would go on board one of the outſide ſhips, and make her ſlip, in order to go along ſide the Leopard, and ſend her to hell, where ſhe ought to go. During this time the Repulſe got off the ground. The priſoner ſoon after came down from his elevated ſituation, ſhook his fiſt, and ſaid, "Damn me, ſhe is off." He directly called the boat's crew of the Sandwich, and went away. I know no more of him.

Q. When the Monmouth was firing at the Repulſe, did you ſee the priſoner pointing or firing any of the guns?—A. I did not.

Q. Was there a hawſer carried out from the Monmouth, to bring her broadſide to bear upon the Repulſe?—A. There was one brought alongſide by another ſhip's boat, which was made faſt, and a broadſide was then fired into the Repulſe: the hawſer was made faſt to the beſt bower-cable.

Q. Did the priſoner give any directions about carrying the towing line out, or placing the ſpring upon the cable?—A. I do not recollect.

Q. At the time the Monmouth was firing at the Repulſe, did you ſee the priſoner, with his clothes off, favouring any exertions he was about?—A. I did not.

Q. How long do you ſuppoſe the heavy fire from the Monmouth on the Repulſe laſted?—A. About two hours, from the beginning to the end.

Croſs examined by Parker.

Q. Do you recollect what time I came on board the Monmouth?—A. No.

Q. Do you imagine I was on board when the Monmouth firſt opened her fire upon the Repulſe?—A. I do not know; but I ſaw a great many of the Sandwich's people on board at that time.

COURT. Did the Monmouth or Director fire firſt at the Repulſe?—A. The Monmouth.

Captain Moſs here informed the Court, that he ſhould call no more witneſſes to ſubſtantiate the charge.

The Preſident then addreſſed the priſoner in a few words. He ſaid, that the evidence for the proſecution was now cloſed, and that the Court would be ready to hear his defence to-morrow, provided he thought it could be prepared by that time.

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The Priſoner anſwered, that it would be impoſſible for him to prepare his defence by to-morrow morning, and expreſſed a hope that every poſſible indulgence would be extended to him on that occaſion.

The Preſident aſſured him, that it was far from the intention of the Court to hurry him on to his defence. But, at the ſame time that they felt diſpoſed to grant him every reaſonable indulgence, they could not help conſidering that their time was highly precious, the public ſervice requiring the attendance of moſt of the officers who compoſed the Court. He aſked the priſoner, at what time he thought he would be ready to proceed on his defence?

The Priſoner repeated his former obſervation, that he could not poſſibly prepare his defence by to-morrow morning.

It was at length agreed that he ſhould be allowed till Monday to prepare himſelf.

The Court adjourded at five o'clock.

THIRD DAY.—*June 24th.*

The Court met, purſuant to adjournment, this morning at ten o'clock.

The Judge Advocate informed the priſoner, that his requeſt to have extracts of the evidence had been taken into conſideration; but as a compliance with ſuch a requeſt was quite unuſual, it could not be granted.

PRESIDENT. The Court has met to conſider and determine as to the time which can be allowed you to prepare for your defence. I think it neceſſary to inform you, that you have not to expect *one moment* longer than Monday morning.

JUDGE ADVOCATE. In the mean time, whatever you may be in want of, the better to enable you to prepare for your defence, ſhall be granted you.

The Solicitor of the Admiralty delivered to Parker a copy of his examination taken before the Magiſtrates at Sheerneſs, which the priſoner had previouſly requeſted.

The priſoner was then furniſhed with pen, ink, and paper: he was at the ſame time addreſſed by the Preſident, and told that he had hitherto had every indulgence ſhewn him that the preſent poſtponement of the trial, by which the country was ſtill longer deprived of the ſervices of ſo many perſons of conſequence, who were neceſſarily detained upon it, was a greater indulgence than had ever been granted to any man in a ſimilar ſituation; but he ſhould, notwithſtanding, during the remainder of his trial, have whatever he aſked for, with a view of enabling him to make his defence, provided it was in the power of the Court to grant it.

The priſoner appeared to be ſenſibly affected with theſe marks of mildneſs and impartiality, for which he thanked the Preſident in a reſpectful manner.

The Court then adjourned till Monday.

FOURTH DAY.—*June 26th.*

The Judge Advocate informed the priſoner, that in conſequence of the requeſt he had made to him for three ſeamen belonging to the Director, who worked the gun at which he was when that ſhip fired upon the Repulſe, to appear as witneſſes in his favour, an expreſs had been ſent to Sheerneſs for them. The Captain of that ſhip had ſent theſe men, viz. W. Hobbs, George Nicholls, and Samuel Veer; and they ſhould appear when called upon. The priſoner

foner had alſo aſked for a man of the name of *Halliſter*, belonging to the Monmouth, and he wss brought on board alſo.

THE PRISONER's DEFENCE.

The priſoner produced a written paper, which contained his defence. He read it to the Court. It was to the following effect:

He began by obſerving, that, as he had been brought up to the ſea from his youth, a fact which was very well known to one of the members of the Court, nothing could be expected from him but a plain and ſimple ſtatement of facts. His defence was not prepared with all that elegance and preciſion of language, which it might have been, had he been aſſiſted by a lawyer.—Such as as it was, however, he was now ready to ſubmit it to the Court. He thanked the Court for the indulgence of time they had granted him, by which he had been enabled to make it perhaps more accurate than it would otherwiſe have been.

Nothing but a conſciouſneſs of his own integrity, and the rectitude of his intentions, could have ſupported him in the trying ſituation in which he had been placed. He declared that he entered into the mutiny with the view of ſtopping the progreſs of a moſt dangerous ſpirit which he found prevailed among the crews of all the ſhips. He had done all in his power to prevent the bad effects that were likely to ariſe from this temper of the ſeamen. All his meaſures were adopted with that view; and the proceedings of the fleet would have been much more alarming had he not acted the part he did.

He ſhould now take the evidence in its order, and make a few remarks upon what had fallen from ſeveral witneſſes.

With regard to Admiral Buckner, he declared he never ſported with his feelings. Every communi-

cation he was compelled to deliver to him in the name of the delegates, had been couched in the moſt reſpectful terms in which he could ſtate it. It might be aſked why he (the priſoner) was fixed upon as preſident of the committee?—The anſwer was, he was choſen; and, in the ſituation in which the fleet then was, it was not poſſible for any individual to reſiſt ſuch an appointment. He was conſcious that matters would have been far worſe if he had not entered into the mutiny; every thing he had done was ſolely for the purpoſe of conciliation.—What Admiral Buckner had ſtated with regard to no reſpect being ſhown to him when he came on board the Sandwich, could not affect him. He was then on ſhore; and when he came on board, he told Admiral Buckner that he was ſorry he had not been received with the uſual marks of reſpect, and the ſhips ſhould cheer him if he wiſhed it. The Admiral had ſtated, that a buſtle was made to man the ſide: He would aſſure the Admiral that the buſtle he obſerved was made at the riſk of his (Parker's) life. An opinion had been propagated on board the different ſhips, that Admiral Buckner was not competent to ſettle the diſcontents ſubſiſting in the fleet; and the Inflexible had declared, that if any reſpect was ſhown to the Admiral, they would come alongſide of the Sandwich and ſink her. Notwithſtanding all that had been ſaid reſpecting the Sandwich, it was not there the mutiny began: It originated in the Inflexible; and there it was always the moſt violent. Admiral Buckner's flag was hauled down without his knowledge: it was ſtruck, when he was going on ſhore with the propoſitions of the Committee.

With regard to the marines who were taken from the Admiral's houſe, he had acted in that tranſaction altogether under the command of the delegates. When the marines were taken away, the Admiral

ſaid

ſaid that one of them had been heard uſing very improper language near Queenborough. The Admiral permitted him (Parker) to examine the marines: and, upon his putting ſome queſtions, the Admiral obſerved, "Now, Parker, you are coming to the point." The marines were then delivered to the delegates, and it was deſired that they ſhould be confined when they went on board. This, he underſtood, was complied with.

When he ſaw Admiral Buckner after his flag was ſtruck, the Admiral ſaid, "Parker, my flag is ſtruck—conſider my feelings." He anſwered, "I have feelings, Admiral Buckner, and I do conſider yours: I am ſorry to ſee it, but it is not in my power to prevent it."

He obſerved, that Lieutenant Juſtice, Captain O'Brien, and ſome other witneſſes who followed theſe gentlemen, had ſtated that they knew nothing of the priſoner. He had therefore no comment to make upon their evidence.

Mr J. Snipe, ſurgeon of the Sandwich, had depoſed that he was preſent at the puniſhment of a man of the name of Campbell, who, he ſaid, was flogged by his (the priſoner's) orders. The fact was, that this man was puniſhed in conſequence of the orders of the committee, for getting drunk, as he ſaid with ſmall-beer. The maſter of the Sandwich, who had then the command of the ſhip, allowed that he deſerved it, and acquieſced in the puniſhment.

With reſpect to another man being put in irons, all that he ſhould ſay with regard to him was, that this puniſhment was inflicted on account of his behaving diſreſpectfully to Captain Moſs.

Dr Snipe had further ſtated, that he was permitted to go on ſhore: he, however, took care not to return again until Captain Moſs reſumed his command, though he promiſed to come on board immediately. He ſhould only remark, that it was not

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the moſt honourable conduct in that Gentleman to break his promiſe, eſpecially in the ſituation the fleet then was with reſpect to the number of its ſick.

Captain Surridge, of the Iris, had ſaid nothing but that he recollected the priſoner delivering the propoſitions of the delegates of the North Sea Fleet. He ſhould therefore make no remarks on his evidence.

With reſpect to Capt. Dixon's evidence, the remarks made upon that of Admiral Buckner applied equally well to it.

He came now to Capt. Wood's evidence. He declared that he went on board the Hound ſolely for the purpoſe of conciliation. Captain Wood had ſtated, that he was informed he was ordered out of the ſhip by him (the priſoner). The perſon, however, who ſaid ſo to Captain Wood, had not been produced; nor did the Captain pretend to know who he was. He aſſured the Court, that he never heard of this order which had been given to Captain Wood, until he ſtated it himſelf on Friday. The expreſſion, *beef-ſteak*, which he was ſaid to have made uſe of, and applied to the pilot, never came from his lips; nor did he give any order to drop the anchor, as had been ſtated. He at this moment, before God, would perſiſt in denying theſe things.

Mr. Flatt had ſtated he did not know the priſoner at the beginning of the mutiny—I ſhall ſay nothing of his evidence now, but ſhall return to it by and by.

Mr Levingſton, boatſwain of the Director, and Samuel Ellis, had depoſed, that they ſaw him on board the Director, and he had aſked for a boat to go on board the Monmouth. What he had to ſay on this ſubject would apply to both theſe witneſſes. He was informed by a delegate, that the Repulſe was getting under weigh; and he was immediately ordered to go on board the Director, to indeavour

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to prevent her from making her eſcape. He readily undertook this buſineſs, as he hoped to prevent the effuſion of blood. When he got on board the Director, he obſerved to the crew, that it was a very melancholy thing that one brother ſhould fight another. He had aſked a boat with a flag of truce to go on board the Repulſe. His reaſon for requeſting this was, becauſe he obſerved the Repulſe to be aground, and he intended, if he had gone on board with the flag of truce, to remain there, and keep it flying until ſhe got off. This, he was convinced, would have prevented the Director from firing upon her.—All that he did on board the Director proceeded from the feelings of humanity. He ſounded the people of the Director, by aſking them if they would wiſh to go along-ſide of the Repulſe; and he was happy to find that they were not inclined to go to ſuch a length.

The evidence of Thomas Barry, ſeaman of the Monmouth, came next to be commented upon. As to what he had ſaid reſpecting him (the priſoner) giving orders to fire, he would prove that every word of it was *falſe;* for he would ſatisfy the Court that he was then on board the Director. In the ſame manner he would diſprove that part of his evidence when he had aſked him (the witneſs) if he had received any bribe. The truth was, that he went on board the Sandwich in the Ardent's boat; and he went on board the Monmouth after he quitted the Director, with the ſame view that he had gone on board that ſhip.

Having now cloſed his remarks on the evidence, he had very little more to addreſs to the Court. He hoped the ſtricteſt inveſtigation would be made reſpecting the evidence of Barry. "However my conduct," ſaid he, "may have been miſrepreſented in public prints, and otherwiſe, I truſt I ſhall ſoon be cleared from ſuch aſperſions. My intentions

were

were good, and I have prevented much evil.—Juſtice is allowed to me by my country, and I hope that juſtice will now be done towards me."

[The priſoner read his addreſs with much rapidity, and no feeling. He hurried over the whole with a total diſregard to emphaſis, point, or effect, and his general delivery was marked by a coarſeneſs of ſpeech that failed to produce a favourable impreſſion upon the minds of his auditory.]

The priſoner having concluded his ſpeech, retired for a few minutes. On his return, he was informed by the Judge Advocate, that having animadverted upon the evidence adduced againſt him, he was not at liberty to deſcant, or to ſay any thing more upon that ſubject. It now remained for him only to call evidence in his defence. The priſoner anſwered, that he was ſatisfied. He then proceeded to call his witneſſes.

EVIDENCE FOR THE PRISONER.

Earl of Northeſk ſworn.

COURT. Q. Was you on board the Sandwich?—A. I was on board on the 6th of June.

Q. Did it impreſs your Lordſhip, that, notwithſtanding the exiſting circumſtances of the fleet, the ſeamen were loyal?—A. Yes.

PARKER. Q. Does your Lordſhip recollect a mark of loyalty in me when coming into the cabin, that I ordered the band to play "God ſave the King?"—A. I recollect, that, on my coming to the cabin, the priſoner did ſo.

COURT.

COURT. What ſituation did the priſoner appear to be in, when you came to the cabin?—A. He appeared to be the principal of the delegates.

Q. Was he as their chief?—A. He was.

Q. Did your Lordſhip receive from the priſoner a letter now produced?—A. I did.

Sandwich, June 6.—Three P. M.

"To Capt. Northeſk,

"You are hereby authoriſed and ordered to wait upon the King, wherever he may be, with the Reſolutions of the Committee of Delegates, and are directed to return back with an anſwer to the ſame, within fifty-four hours from the date hereof.

"I have likewiſe to inform you, that an oath has been taken by the Delegates of the Fleet, that they never have had any communication with Jacobins or Traitors.

R. PARKER, Preſident."

Q. Was your Lordſhip preſent at the writing of that letter?—A. I was preſent at the writing of the latter part.

Q. Does your Lordſhip recollect ſeeing a ſhow of hands from the delegates, expreſſive of their wiſh that this part of the letter ſhould be inſerted?—A. I remember it was their wiſh it ſhould be known they were not Jacobins nor Traitors.

Captain Knight ſworn.

PARKER. Do you recollect being on board the Sandwich?—A. Yes; more than once.

Q. Were you ever impreſſed with any mark of loyalty ſhown by the people aſſembled on board?—A. I heard "God ſave the King," "Britons, ſtrike home," and "Rule Britannia," played by the band; and I heard them expreſs a reſpect and veneration for

for their Sovereign. Further, I think I heard the priſoner ſay, that if there was a certainty that the enemy's fleet were at ſea, that they would take the ſhips under their direction, and go in ſearch of them. He ſaid alſo, that if the Dutch fleet were then in the Texel, he would lead the fleet in, and attack them, in order to prove to the nation that they were neither Rebels nor Traitors.

Capt. Moss. Do you remember the flags hoiſted on board the Sandwich on the 29th of May and 4th of June?—A. I was not at the Nore on the 29th of May. On the 4th of June, I remember ſeeing the ſtandard at the fore-top-maſt head, a plain red flag at the main, and the union at the mizen.

Q. On all loyal days, is it not the practice and cuſtom to hoiſt the Royal Standard at the main-top-maſt?—A. Yes; it is.

Court. Was it prior to your hearing the priſoner make uſe of loyal expreſſions, or after, you ſaw the Royal Standard diſplayed at the fore, and the red flag flying at the main?—A. It was on the 8th, when I went on board the Sandwich with the acts of Parliament and his Majeſty's proclamation, and heard the expreſſions to which I have alluded.

Q. Did you receive the letter now preſented to you from the priſoner?—A. I received it from one of the delegates or committee-men of my own ſhip.

This letter was then read. It ſtated, that the priſoner felt concern for the ſituation of the Captain, and therefore gave him permiſſion to go on ſhore, though the officers were to be kept as hoſtages; and that if he (the Captain) did not return on board in the courſe of three days, it would be conſidered as a breach of confidence, and that he muſt abide by the conſequences. It alſo ſtated, that they had no connection with Jacobins, and was ſigned by

"Richard Parker, Preſident."

Court.

COURT. Was the red flag flying on board the Sandwich, when the priſoner made uſe of the loyal expreſſions alluded to by you?—A. It was.

Q. Have you ever underſtood, from the priſoner, or any of the delegates, what the red flag meant?—A. I recollect, on the 8th of June, when I was on board, aſking what it really did mean? when I was informed by the priſoner, or ſome of his aſſociates, that they wiſhed to eſtabliſh it, and fight under it, as the Dutch had ſtolen it from the Engliſh.

Q. During the time you were on board the Sandwich, did the priſoner appear to direct the proceedings?—A. I do not remember his giving any direction, but it was he who addreſſed me. He reported to me when the boat was ready to take me away.

Capt. STANHOPE. How do you reconcile the expreſſions of loyalty you have mentioned with the treatment you received, by the total annihilation of your authority, the breach of the laws of your country, and the impriſonment of your officers?—A. They are certainly irreconcileable.

The priſoner here wiſhed to know, if he could aſk Captain Moſs, the proſecutor, a queſtion?

The Preſident anſwered, it could not be allowed, unleſs he was regularly ſworn.

Jacob Swanſon, Gunner of the Sandwich, ſworn.

PARKER. Do you recollect the day on which Admiral Buckner's flag was ſtruck on board the Sandwich?—A. I do not.

Q. Do you know any perſon or perſons who were aiding or aſſiſting in ſtriking the flag?—A. No.

Q. Do you recollect Captain Moſs's having ſaid on the quarter-deck, that as the mutiny unfortunately had commenced, he thought it fortunate I

happened to be on board the Sandwich, to keep down the ſpirit of it, as I ſeemed perfectly moderate?—A. I do not recollect that Captain Moſs ſaid any thing of the kind.

Q. Do you recollect, during the mutiny, to have informed me that ſuch converſation had taken place between Captain Moſs and his officers?—A. I do not.

Q. Did you ever form an opinion of me perſonally, that it would make me happy if the fleet could be brought into a moderate way of thinking, and to deliver up the command of the ſhips to the officers, truſting to our gracious Sovereign for a redreſs of grievances?—A. I have heard the priſoner expreſs a wiſh that the affair was ſettled, at the latter part of the mutiny.

Q. Capt. Moss. Was the priſoner particularly active when the Repulſe was aground, and what did he ſay on ſeeing her get off?—A. I did not hear him ſay any thing reſpecting her getting off. I merely heard him ſay, when he came on board the Sandwich that evening, that he muſt get a boat to go on board the Director, to put a ſpring on her cable; and if his father was on board that ſhip (pointing to the Repulſe) he would ſend her to hell, for that was where ſhe belonged to.

Q. What do you recollect the priſoner to have ſaid reſpecting the cauſe in which he was embarked?—A. I have heard him ſay that it a good cauſe, and that there was no doubt but they ſhould gain their point.

Court. What point do you ſuppoſe he meant?—A. A redreſs of the grievances of which they complained.

Q. Do you recollect the priſoner giving any directions or orders at any time on board the Sandwich?—A. I do not recollect any particular order given

given by him, except the laſt I have ſtated. I was very ſeldom on deck.

PRESIDENT. Did you ever hear the priſoner, or any perſon calling himſelf a Delegate, ſay what they meant by hoiſting a red flag?—A. I do not recollect, nor did I ever aſk any of them reſpecting it.

PARKER. Do you ever recollect my ſaying to you, what a pity it was that the Inflexible belonged to the fleet; and that, if it had not been for that ſhip, things would have been amicably ſettled long ſince?—A. Yes; I do.

COURT. Do you recollect on what day the priſoner made uſe of thoſe expreſſions?—A. I do not.

Q. Do you recollect whether it was before or after the King's birth-day that the red flag was hoiſted?—A. No.

Q. At what time of the day did the Repulſe get on ſhore, and what time did ſhe get off?—A. She got aſhore about three o'clock in the afternoon, and got off about half paſt five the ſame day.

Q. Do you recollect what time of the day the priſoner returned to the Sandwich from the Monmouth?—A. I do not recollect; it was late in the evening.

Q. At the time the priſoner ordered the Sandwich's boat to be hoiſted out, was the Repulſe on ſhore?—A. I do not preciſely recollect.

Q. At what time that afternoon did the Monmouth ceaſe firing upon the Repulſe?—A. The Repulſe was off, I think, before the Monmouth ceaſed firing.

Q. Was it ſufficiently day-light for you to ſee the Repulſe anchor in Sheerneſs harbour?—A. To the beſt of my recollection, ſhe was in before dark.

Q. Can you recollect whether it was before or after the Repulſe went into Sheerneſs harbour that

the priſoner declared it was a great pity the Inflexible belonged to the fleet?—A. I do not recollect.

Edward Allen, Seaman of the Sandwich, ſworn.

PARKER. Do you recollect the day on which the mutiny broke out on board his Majeſty's ſhip Sandwich?—A. No, I do not.

Q. Were you on board that day?—A. Yes.

Q. Did I take any active part in the proceedings of that or the following day?—A. Not to my knowledge.

Q. Do you recollect my frequently complaining to you and your meſſmates, what a pity it was that things ſhould be carried on in ſo violent a manner?—A. I do not recollect your uttering any ſuch words.

Q. Did you ever form any opinion, from the manner of my proceedings, whether it would have given me pleaſure to have ſeen the matter ſettled?—A. I know nothing on that ſubject.

COURT. Did you ever hear the priſoner, or any other perſon calling himſelf a Delegate, ſay what was meant by the Red Flag?—A. No.

Matthew Halliſter, Seaman of the Director, ſworn.

PARKER. Do you recollect at what time I left his Majeſty's ſhip Director, the day on which the Repulſe went aſhore in attempting to get into Sheerneſs harbour?—A. I cannot ſpeak as to the hour or minute, but it was late in the evening.

This witneſs being a priſoner, Parker did not think proper to preſs any other queſtion upon him, leſt it ſhould lead to criminate himſelf.

COURT. Did you ever hear the priſoner, or any other delegate, ſay what was meant by the red flag?—A. I feel myſelf called upon to declare before God, that I did not know what the red flag meant.

Thomas

Thomas Barry, ſeaman of the Monmouth, (who had given evidence on the part of the proſecution) called and ſworn.

PARKER. What time of the day was it that you ſtated me to have fired the forecaſtle guns of the Monmouth upon the Repulſe, as ſhe was endeavouring to get into Sheerneſs harbour?—A. About four o'clock, to the beſt of my knowledge.

Q. You ſtated to the Court that you were confined by order of a man whom you called Captain Vance: what time did that confinement commence, and how long did it continue?—A. My confinement began about a quarter after four, and ended about a quarter before ſix.

Q. You related on Saturday that I gave you a ſhove over the head of the fore-top-maſt: at what time did that tranſaction take place?—A. It was cloſe upon four o'clock.

Q. Do you not think that it was poſſible for you, in the hurry and confuſion of things on board the Monmouth, to miſtake me for another perſon?—A. No.

Q. At what time did the tranſaction happen of the crow-bar being introduced into a gun, with an intent of being fired, which you have repreſented to have taken place?—A. About ten minutes before four o'clock.

Q. Was the perſon who introduced the crow-bar with part of his clothes off, or the whole of them on?—A. He pulled of a ſhort or half coat; he had waiſtcoat on.

Q. What time was it when the diſcourſe related by you took place between myſelf and the man you called Captain Vance?—A. About half paſt four.

Capt. Moss. Is it within your knowledge that any boat eſcaped from the Monmouth the evening of her firing on the Repulſe?—A. I do not know.

PARKER. This evidence ſpeaks of my pulling off a half coat—I have no ſuch thing as a half-coat belonging to me; and I aſſure the Court, and I can prove my being at another place at the time the tranſaction took place.

W. Hobb, Seaman of the Monmouth, ſworn.

PARKER. Look at me—do you know me?—A. I never ſaw the priſoner in my life, to the beſt of my knowledge.

PARKER. Then I have no queſtions to put to you.

PRESIDENT. In what part of the ſhip were you when the Monmouth was firing upon the Repulſe?—A. I was quartered on the forecaſtle, but I was moſtly between decks.

George Nicholls, Seaman of the Monmouth, ſworn.

COURT. Do you know the priſoner?—A. No, I never ſaw him before.

Q. In what part of the ſhip were you ſtationed when the Monmouth fired upon the Repulſe?—A. I was quartered on the forecaſtle, but never came up.

Samuel Veer, Seaman of the Monmouth, ſworn.

PARKER. Look at me—do you know me?—A. No, I do not; I never ſaw the priſoner before, to my knowledge.

COURT. In what part of the ſhip were you placed during the firing of the monmouth upon the Repulſe?—A. On the forecaſtle part of the time, and between decks for the remainder.

Q. At what gun of the forecaſtle were you ſtationed?—A. At the ſecond gun. I remained on the forecaſtle about a quarter of an hour after the firing commenced.

PARKER. During the time you were on the forecaſtle,

caſtle, did you obſerve the tranſaction of a crow-bar being introduced into a gun?—A. No.

Q. How long did the firing laſt?—A. About an hour.

The priſoner here ſaid, he had no more witneſſes to call, but requeſted that he might be permitted to put a few more queſtions to Matthew Halliſter, who was accordingly re-examined by him.

PARKER. Can you recollect any thing near the time of my quitting the Director on the day before alluded to?—A. It was ſome ſhort time before the Repulſe got adrift. I cannot ſtate the hour.

Q. Had not the Monmouth ceaſed firing?—A. I believe ſhe had.

Q. Which ſhip ceaſed firing firſt, the Director or Monmouth?—A. I cannot poſitively ſay.

Q. Did the Director ceaſe firing before the Repulſe got off?—A. I believe ſhe did not.

Capt. Moss. How long had you been below at the time the director was firing, previous to the Repulſe getting afloat?—A. I cannot tell; my ſtation being in the magazine, I went down for the ſafety of the ſhip.

Q. Were you in the magazine from the commencement of the firing?—A. Not all the time.

Q. How long after the commencement of the firing was it before you went into the magazine?—A. About a quarter of an hour.

Q. How long did you remain there?—A. About twenty minutes.

Q. Where did you then go to?—I went up between decks, as there was a great deal of powder between decks, and matches were careleſsly carrying about, to prevent accidents.

Q. How long did you remain there?—A. Backwards and forwards about three quaretrs of an hour.

Q. Where did you go to from between decks?—A. Upon the main deck.

Q. Had

Q. Had the firing then ceaſed?—A. Yes it had.

Q. At what hour was it when you ſaw the priſoner go from the Director?—A. Between ſeven and eight; but I cannot be certain.

Q. Was it before or after ſun-ſet?—A. It was ſome time near ſun-ſet.

The priſoner here ſaid, he had no other witneſſes to call.

The preſident reminded the priſoner, that the charges exhibited againſt him were of the moſt weighty and ſerious nature; and if he had any more witneſſes upon whom he could now call, he deſired him, for God's ſake, to avail himſelf of their teſtimony.

The priſoner replied, that if the Court would grant him till to-morrow, he ſhould then be prepared to call freſh witneſſes.

The preſident ſaid, no longer time could be allowed him for his defence than the preſent day.

The priſoner then ſtated to the Court that he had done. He expreſſed a hope that the Court would take the nature of his caſe into their conſideration, and put the moſt favourable conſtruction upon his actions—His willingneſs to give up the ſhip in which he was ſtationed had been proved; and he threw himſelf upon the indulgence of the Court, to give him credit for the purity of his conduct upon every other occaſion.

The Court was cleared at a quarter before two, and re-opened at four, when the priſoner was again brought in. The Members of the Court Martial were all ſeated, with their hats on.

The ſentence of condemnation was then pronounced, as follows:

"At a court martial held on board his Majeſty's "ſhip Neptune of 98 guns, lying in the River "Thames, on Thurſday the 22d day of June 1797,

"and

" and continued by adjourment till the 26th of the " ſame month—preſent (*Here the names of the Mem-* " *bers were recited.*) The Court, purſuant to an " Order of the Commiſſioners for executing the of- " fice of Lord High Admiral, directed to Sir Thomas " Paſley, have proceeded to try Richard Parker, be- " ing a perſon belonging to his Majeſty's fleet, on a " charge for having attempted to make mutinous " aſſemblies on board the Sandwich, and divers other " veſſels at the Nore; and alſo on a charge of having " behaved with contempt to the officers on duty, and " having diſobeyed his ſuperior officers.—The Court " having heard witneſſes in ſupport of the charges, " and alſo the priſoner in his defence, and the evidence " in ſupport of what he has alledged in his defence, " are unanimouſly of opinion—That the whole of the " Charges are fully proved, that the crime is as un- " precedented as wicked, as ruinous to the Navy as " to the Peace and Proſperity of the Country: The " Court doth therefore adjudge him to death; and " he is ordered to ſuffer death accordingly, at ſuch " time and place as the Lords Commiſſioners of the " Admiralty, or any three of them, ſhall appoint."

Parker, with a degree of fortitude and undiſmayed compoſure which excited the aſtoniſhment and admiration of every one, ſpoke as follows:

" I have heard your ſentence—I ſhall ſubmit to it without a ſtruggle.—I feel thus, becauſe I am ſenſible of the rectitude of my intentions. Whatever offences may have been committed, I hope my life will be the only ſacrifice—I truſt it will be thought a ſufficient atonement. Pardon, I beſeech you, the other men—I know they will return with alacrity to their duty."

The

The preſident then briefly addreſſed himſelf to the priſoner. He ſaid, that notwithſtanding the enormity of the crimes of which he had been found guilty on the fulleſt and cleareſt evidence, yet the Court, in order to afford him the neceſſary time to expiate his offences, and to make his peace with God, would not then name any day for his execution, but leave that point to the determination of the Lords of the Admiralty.

The priſoner then withdrew, apparently with little or no concern, and was ſoon after put in irons, in common with the other priſoners.

The behaviour of this unhappy man, throughout the whole of his trial, was firm and manly, and while he was before the Court, Decent and reſpectful.

He was removed from on board the Neptune, by a counter order from the Admiralty, and received into an armed gun-boat under a ſtrong guard of marines, which ſailed immediately for Sheerneſs: he took a manly leave of all his mutineer aſſociates, thoſe of the Inflexible excepted, which he paſſed by without notice.

THE EXECUTION.

At eight o'clock, on the morning of the 30th, a gun was fired from on board his Majeſty's Ship L'Eſpion, lying off the garriſon, Vice Admiral Lutwitge's flag-ſhip, and the *yellow flag*, the ſignal of capital puniſhment, was hoiſted, which was immediately repeated by the Sandwich hoiſting the ſame colour on her fore-top. The Sandwich was ſtationed rather above Black-ſtakes, the headmoſt ſhip of the fleet. The garriſon, on the gun firing, were immediately under arms, conſiſting

conſiſting of the Eaſt and Weſt York, and Weſt Norfolk Militia, a corps of invalids, and a train of artillery; all of which with fixed bayontes, marched out of the Sally Port Gate, with their colours flying, and proceeded in ſingle files along the South ſhore of the Medway, near to Queenborough, in order to be ſpectators of the event. All the barrier gates of the garriſon were now ſhut, and each ſhip in the fleet at this time ſent a boat off with a lieutenant, and a party of marines, to attend the Sandwich; and the crews of all were piped to the forecaſtle, and the marines drawn upon the quarter-decks, to be witneſſes of the execution.

The priſoner, who had taken his uſual repaſt in the birth allotted him in the gun-room, and paſſed the night in great compoſure, was awaked a little after ſix o'clock from a ſound ſleep, by the marſhal provoſt, who, with a file of marines, compoſed his guard: he aroſe with cheerfulneſs, and requeſted permiſſion might be aſked for a barber to attend him, which was granted: he ſoon dreſſed himſelf in a neat ſuit of mourning (waiſtcoat excepted) ſent him by a friend of the name of Templar, wearing his half-boots over a pair of black ſilk ſtockings: he then took his breakfaſt; talked of a *will* he had written, in which he had bequeathed to his wife a little eſtate he ſaid he was heir to; and after that lamented the misfortune that had been brought on the country by the mutiny; but ſolemnly denied having the leaſt connection or correſpondence with any diſaffected perſons aſhore; and declared, that it was chiefly owing to him that the ſhips had not been carried into the enemy's ports.

At half after eight he was told the chaplain of the ſhip was ready to attend him to prayers upon the quarter-deck, which he immediately aſcended, uncovered: at his firſt entrance on the deck, he looked a little paler than common, but ſoon recovered his

uſual

uſual complexion; he bowed to the officers, and a chair being allowed him, he ſat down a few moments, and ſteadily ſurveyed the military array of marines under arms, round the deck; he then aroſe, and told the clergyman he wiſhed to attend him: the chaplain informed him he had ſelected two pſalms appropriate to his ſituation; to which the priſoner aſſenting, ſaid, "And, with your permiſſion, Sir, I will add a third," and named the 51ſt, that beautiful confeſſional of David, and imploring forgiveneſs, "Have mercy upon me, O God, after thy great goodneſs, according to the multitude of thy mercies, do away mine offences!" &c. He then recited each alternate verſe in a manner peculiarly impreſſive. At nine o'clock the preparatory gun was fired from L'Eſpion, which he heard without the ſmalleſt emotion.—Prayers being ſoon after cloſed, he roſe, and aſked Captain Moſs, "If he might be indulged with a glaſs of white wine?" which being immediately granted, he took it, and, lifting up his eyes, exclaimed—"I drink firſt to the ſalvation of my ſoul!—and next to the forgiveneſs of all my enemies!"—Addreſſing himſelf to Captain Moſs, he ſaid, "He hoped he would ſhake hands with him," which the Captain did; he then deſired "that he might be remembered to his companions on board the Neptune; with his laſt dying entreaty to them, to prepare for their deſtiny, and refrain from unbecoming levity!"—His arms being now bound, the ſolemn proceſſion moved from the quarter-deck to the forecaſtle, in the following order:

1. The boatſwain and mates.

2. The provoſt martial, his ſword in one hand, and the halter in the other.

3. Captain's clerk of the Sandwich, bearing the warrant of execution, under the ſeal of the Vice-Admiral.

4. The

4. The Reverend Mr Atherton, chaplain of the Sandwich, in his robes.

5. The priſoner, in mourning, walking with a firm deportment.

6. The ſhip's maſter of arms, with his drawn cutlaſs.

7. Captain Moſs, and his Officers, with two or three other gentlemen, who were admitted on board. The whole paſſed through a double file of marines on the ſtarboard ſide, to a platform erected on the Cathead, with an elevated projection. Arriving there, he knelt with the Chaplain, and joined in ſome devout ejaculations; to all of which he loudly repeated, *Amen*. Riſing again, the Admiral's warrant of execution, addreſſed to Capt. Moſs, was now read by the clerk, in which the Sentence of the Court martial, Order of the Board of Admiralty, and His Majeſty's Approbation of the whole proceedings, were fully recited, which the priſoner heard with great attention, and bowed his head, as if in aſſent, at the cloſe of it. He now aſked the Captain "whether he might be allowed to ſpeak?" and immediately apprehending his intention might be miſconceived, he added, "I am not going, Sir, to addreſs the "ſhip's company; I wiſh only to declare, that I ac-"knowledge the juſtice of the Sentence under which "I ſuffer; and I hope my death may be deemed a "ſufficient atonement, and ſave the lives of others."

He now requeſted "a minute to collect himſelf," and knelt down alone about that ſpace of time; then riſing up, ſaid, "I am ready!"—and holding his head up with conſiderable dignity, ſaid to the boatſwain's mate, "Take off my handkerchief," (of black ſilk) which being done, the provoſt martial placed the halter over his head, (which had been prepared with greaſe); but doing it awkwardly, the priſoner ſaid, rather pettiſhly to the boatſwain's mate, "Do you do it, for he ſeems to know no-

thing about it!" The halter was then ſpliced to the reeved rope: all this being adjuſted, the marſhal attempted to put a cap on, which he refuſed; but on being told it was indiſpenſible, he ſubmitted, requeſting it might not be pulled over his eyes till he deſired it. He then turned round, for the firſt time, and gave a ſteady look at his ſhipmates on the forecaſtle, and with an affectionate kind of ſmile nodded his head, and ſaid "Good bye to you"—He now ſaid, "Captain Moſs, is the gun primed?"—"It is.—"Is the match alight?"—"All is ready."—On this he advanced a little, and ſaid, "Will any Gentleman be ſo good as lend me a white handkerchief for the ſignal?" After ſome little pauſe, a Gentleman ſtepped forwards, and gave him one; to whom bowing, he returned his thanks:—he now aſcended the platform, repeated the ſame queſtions about the gun, evidently to gain the time he wiſhed, for the perfect completion of what he had preconcerted in his own mind, then the cap being drawn over his face, walked by firm degrees up to the extremity of the ſcaffold, he dropped the handkerchief, put his hands in his coat-pockets with the greateſt rapidity, and at the moment as he was ſpringing off, the fatal bow-gun fired, and the reeve-rope catching him, run him up, though not with great velocity, to the yard-arm! When ſuſpended about midway, by the elaſticity of the rope, his body appeared extremely convulſed for a few ſeconds, immediately after which no appearance of life remained.

It being tide of ebb, the ſtarboard yard-arm pointed to the Iſle of Grain, where ſcaffolding was erected for ſpectators on ſhore: a conſiderable number of yachts, cutters, and other craft, ſurrounded the Sandwich. The laſt time the priſoner knelt with the chaplain at the cat-head, though he made his reſponſes regularly, his attention was particularly directed the whole time to the armed boats of the fleet, which were plying round on duty. The whole

whole conduct of this awful ceremony was extremely decorous and impreſſive: it was evident, from the countenances of the crew of the Sandwich, that the general feeling for the fate of their mutinous conductor, was ſuch as might be wiſhed; not a word —and ſcarce a whiſper was heard among them.

The inſtant he was viſible to the garriſon, at the yard-arm, the telegraph was put in motion to announce it to the Admiralty; and from the clearneſs of the atmoſphere and quickneſs of working, the advice muſt have been received in ſeven minutes.

He ſuffered exactly at half paſt nine, and was lowered down, after hanging at the yard-arm a full hour, when the yellow flag was ſtruck, and his body inſtantly put into a ſhell that had been prepared for it, with all his clothes on; and ſoon after, it was taken in one of the Sandwich's boats, and rowed to the eaſt point of the garriſon, and there being landed, was carried to the new naval burying-ground, out of the red barrier gate, leading to Minſter. The coffin-lid was here taken off to the ſpectators for a few minutes; his countenance appeared not much altered, but his eyes were wide open. He was interred exactly at noon.

Parker was about 5 feet 10 inches high, ſtout made, and between 30 and 40 years of age; the features of his face were prominent and manly, but not indicative of any great degree of mental ſtrength or acuteneſs. His hair and eyes dark, his complection rather ſallow, and the whole appearance of the man more of a rude mechanic than a ſeaman. His deportment was more cool than collected; and if that, as well as the tone of his voice, was to be truſted, he was neither of a very ferocious nor a very obdurate diſpoſition.

FINIS.

Ex. E. Mr. F